

Constitution

PREAMBLE

Contained within the text of this document lies the Constitution of the McMaster Engineering Society. The McMaster Engineering Society is a society comprised of the undergraduate students in the Faculty of Engineering at McMaster University in Hamilton, Ontario, Canada. This document shall form binding terms of reference and shall supersede all previous constitutions, operating policies, and any related documentation.

The McMaster Engineering Society was formed due to the actions of a few innovative and responsible individuals in the Fall of the year 1959. This tradition of innovation and responsibility has continued to date, and as the Society continues to grow these traditions promise to nurture strength and spirit in the years to come.

This Constitution was streamlined in 1997 and again in 2020 and partnered with Bylaws in order to provide guidance and set standards for the operations and initiatives of the McMaster Engineering Society.

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1. Article One: NAME AND DEFINITION

1.1. The following is the Constitution of the McMaster Engineering Society, the organization representing the undergraduate students in the Faculty of Engineering at McMaster University.

1.2. In practice, the organization shall be known as the McMaster Engineering Society, the MES, or the Society.

1.3. In all instances, this document forms the binding terms of reference for all the Society's operations, activities, and policies.

2. Article Two: MISSION STATEMENT

2.1. The McMaster Engineering Society will foster the development of well-rounded undergraduate students in the Faculty of Engineering at McMaster University through accessible support of academic, athletic, recreational, and professional activities, while maintaining the integrity and unique traditions of our faculty society.

3. Article Three: MEMBERSHIP

3.1. Membership of the Society shall be composed of the undergraduate students in the Faculty of Engineering at McMaster University, hereafter referred to as "Members".

4. Article Four: FEE INCREASES

4.1. All fee increases other than by Consumer Price Index will need to be called via referendum.

5. Article Five: THE EXECUTIVE

5.1. The Executive shall be composed of the following roles:

i. President
ii. Vice-President Academic
iii. Vice-President Communications
iv. Vice-President External Relations
v. Vice-President Finance
vi. Vice-President Internal
vii. Vice-President Student Life

5.2. The responsibilities, powers, and authority of the Executive are outlined in the Bylaws.

6. Article Six: THE PROGRAM SOCIETIES

6.1. A Program Society shall be a fully recognized organization of Members.

6.2. Program Societies shall be affiliated with either a specific engineering program or department.

6.3. New MES Program Societies must put forth a motion for recognition by the MES at a General Meeting.

6.4. The MES recognizes the following Program Societies:

i. Bachelor of Technology Association (BTA)
ii. Chemical Engineering Society (ChES)
iii. Civil Engineering Society (CES)
iv. Computer Science Society (CSS)
v. Electrical and Computer Engineering Society (ECES)
vi. Engineering and Society Students' Association (ESSA)
vii. Engineering Physics Society (EPS)
viii. iBioMed Society (iBMS)
ix. Materials Science and Engineering Society (MSES)
x. McMaster Engineering and Management Society (MEMS)
xi. McMaster Mechatronics Society (MMS)
xii. McMaster Society of Mechanical Engineering (MSME)
xiii. Software Engineering Society (SES)

7. Article Seven: THE PROGRAM REPRESENTATIVES

7.1. There shall be one Program Representative from each Program Society:

i. Bachelor of Technology Representative
ii. Chemical Engineering Representative
iii. Civil Engineering Representative
iv. Computer Science Representative
v. Electrical and Computer Engineering Representative
vi. Engineering and Management Representative
vii. Engineering and Society Representative
viii. Engineering Physics Representative
ix. Integrated Biomedical Engineering and Health Sciences Representative
x. Materials Science and Engineering Representative
xi. Mechanical Engineering Representative
xii. Mechatronics Engineering Representative

xiii. Software Engineering Representative

7.2. There shall be one Engineering 1 Representative.

8. Article Eight: THE COUNCIL

8.1. The Council shall consist of 15 votes:

i. The Executive (1)

ii. The Program Representatives (14), with one vote per Representative

8.2. The Executive shall have one vote, held by the President.

8.3. The Council will be chaired by the Chief Returning Officer.

8.4. The responsibilities, powers, and authority of Council are outlined in the Bylaws.

8.5. Any one person may not hold more than one position on Council at one time.

i. In the event that this occurs, the person must resign from one of the positions.

8.6. If any position is vacant, it will be filled as outlined in the Bylaws.

8.7. The elections, eligibility, and terms of office for all Council positions are outlined in the Bylaws.

9. Article Nine: ELIGIBILITY

9.1. Candidates must be Members at the time of their campaign.

9.2. Elected individuals must be Members throughout the duration of their term.

9.3. Candidates for President must have been Members for at least two (2) years at the time of their election.

9.4. Candidates for Vice-President must have been Members for at least one (1) year at the time of their election.

9.5. Candidates for Engineering 1 Representative must be registered in Level 1 at the time of their election.

9.6. Eligibility exceptions may be granted at the discretion of Council.

10. Article Ten: ELECTIONS

10.1. At least 3% of all Members must vote for an election to be considered valid.

10.2. For election periods with multiple simultaneous elections, a vote cast in any election will count as an abstention in all elections not voted in.

10.3. All elections of the Society that result in a single winner shall be conducted using the instant-runoff voting method.

10.4. There must be both “Non-Confidence” and “Abstain” voting options on the ballots of all elections of the Society.

a. An “Abstain” vote shall be considered to be a participatory vote that counts towards quorum, but does not affect the outcome of the election.
b. A “Non-Confidence” vote shall be considered as a vote that the position shall be filled in a by-election.

11. Article Eleven: RECALL

11.1. General

11.1.1. A referendum shall be called by the Council to seek the removal from office of an elected official of the Society upon the receipt, by the President in the case of:

i. A Program Representative, a valid petition of no less than thirty of that representative’s constituents; or
ii. Any other Council member, a petition of no less than 250 Members

11.2. Petition

11.2.1. A petition for a referendum on the removal from office of an elected official of the Society shall state the reasons for which the removal of the official in question is requested, and a separate petition shall be required for each official whose removal is sought.

11.2.2. Solely Members who are in the constituency represented by that official may sign the aforementioned petition.

11.2.3. No such petition shall be accepted if the person named therein has been removed from office and re-elected within 90 days prior to the receipt of the petition.

11.3. Referendum

11.3.1. A referendum called by the Council to seek the removal from office of an elected official of the Society shall be directed solely to the constituents of that official.

11.3.2. Should half plus one of all the votes cast (including spoiled ballots) in the referendum seeking the removal from office of an elected official of the Society favour that removal, the official in question shall immediately cease to hold the office.

i. The position shall be declared vacant due to a circumstance other than the expiration of the term of office of the official

11.3.3. Any person recalled from office shall be eligible for re-election.

12. Article Twelve: REFERENDA

12.1. General

12.1.1. A referendum to consult the Members for a purpose connected with the affairs of the Society must be called:

i. By a majority vote of the Council; or

ii. Upon receipt, by the Chief Returning Officer of a petition in writing of not less than 250 Members. The Chief Returning Officer shall verify the validity of the petition and of each signature, and shall report to the Council thereon.

12.1.2. The wording of the referendum question shall be decided by the Chief Returning Officer, subject to the approval of the representatives(s) of the petitioners.

12.2. Action on a Petition

12.2.1. The request for a referendum of any issue connected with the affairs of the Society must be acted on at the first meeting of the Council after the submission of the petition to the Chief Returning Officer.

12.3. Procedures

12.3.1. The Chief Returning Officer will conduct the referendum.

12.3.2. The exact wording of the referendum question shall be published in an issue of a publication with widespread circulation amongst the Members, be posted on all Society bulletin boards, and announced by Program Representatives to their respective constituents, not later than one week before the opening of the polls.

12.3.3. All election procedures herein or otherwise, shall be in accordance with the procedures for such activity in the elections and by-elections of the Society, as outlined in the Bylaws.

12.4. Results

12.4.1. A motion as stated in a referendum is passed with an affirmative vote of at least half plus one of the total ballots cast (including spoiled ballots) and subject to b) below.

12.4.2. The results of the referendum shall be binding on the Society, provided that no less than 3 percent of the Members cast ballots therein.

13. Article Thirteen: GENERAL MEETINGS

13.1. There shall be at least one General Meeting per fall and winter term.

13.2. Quorum at General Meetings shall be 3% of the McMaster undergraduate students in the Faculty of Engineering

13.3. All motions in compliance with the Bylaws and Constitution procedures that pass at a General Meeting shall be binding on the Society.

14. Article Fourteen: AMENDMENTS TO THE CONSTITUTION

14.1. Amendments to the Constitution shall be called and conducted in accordance with the following stipulations:

14.2. General

14.2.1. The Constitution can be amended only through either of:

i. A vote at a General Meeting of the Society; or
ii. A referendum of the Members

14.3. Procedures

14.3.1. An amendment to the Constitution may be proposed through a majority vote of the Council or through a petition as described in the section on referenda.

14.3.2. The Council will decide upon the exact wording of the amendment.

14.3.3. If the amendment is called for by petition, the final wording of the amendment is subject to the approval of the representative(s) of the petitioners.

14.4. Notice

14.4.1. The exact wording of the amendment and the method of polling to be used must be published in a publication with wide circulation amongst the Members not later than one week prior to the time of polling on that amendment.

i. In addition, this same notice must be given on all of the bulletin boards of the Society.

14.5. Method of Polling

14.5.1. The Members can be polled with regard to amendments that have been duly advertised (See Article 13, part 3(a)) in two ways:

a. Through a vote at a General Meeting of the Society.
    i. The amendment will be enacted provided that the amendment is supported by an affirmative vote of at least half plus one of the total votes cast (including abstentions) at a General Meeting of the Society.
    ii. For the purpose of constitutional amendments, quorum at a General Meeting shall consist of 3% of the Members, provided that due notice has been given according to the provisions therefore.
    iii. Proxy votes will not be accepted at a General Meeting.

b. Through referendum.
    i. A complete statement of the exact wording of the proposed amendment must appear at the top of the ballot followed by the question: “Should the amendment to the Constitution of the McMaster Engineering Society as stated above be adopted?”
    ii. The referendum must otherwise be conducted according to the regulations given Article 11: Referenda.

14.5.2. The Council will decide upon the method of polling the Members, unless the amendment is called for by petition, in which case the representative(s) of the petitioners shall decide the polling method to be used.

14.6. Non-Substantive Amendments

14.6.1. Amendments to this constitution that are simply corrective measures to ensure proper implementation of amendments or grammatical structure may be made by the Chief Returning Officer following a notice to Council, provided these amendments do not change the concept or spirit of the point being amended.

15. Article Fifteen: BYLAWS

15.1. The Society may enact such bylaws as may be necessary for its operations, provided they are in agreement with the principles embodied in this Constitution.

15.2. All bylaws of the Society shall be recorded in the Bylaws document.

15.3. Such policies may be enacted, amended, or repealed through Council by means of two successive readings at separate meetings or a majority vote at a General Meeting.

15.4. Chief Returning Officer shall:
    a. Ensure that the proposal follows the spirit of the Constitution and Bylaws.
    b. Ensure that the proposal is placed in the appropriate section within the Bylaws.
    c. Ensure that the wording of the proposal is clear and unambiguous.
    d. Ensure that all clerical and grammatical structure amendments required to ensure proper implementation of the spirit of the amendment are made, provided these amendments do not change the concept or spirit of the point being amended.
    e. Suggest amendments to any motion that does not comply to a, b, c, and d.

15.5. The proposed amendment must receive a two-thirds majority vote in its favour before it is accepted as a bylaw of the Society. If in the case that the amendment is not approved, the bylaw may be amended and issued again for a Second Reading, or declared dead.

15.6. An approved bylaw amendment shall take effect immediately after its passing.

16. Article Sixteen: macLAB BYLAWS

16.1. The McMaster Laboratory Advancement Benefaction (macLAB) Endowment Fund Bylaws exist to govern the macLAB funds and shall exist separately from all other Bylaws.